

Kadeer Hussain @ Kadeer Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 January 2023 · WRIT - C No. 270 of 2023 · **Petition disposed; objections in fifteen days, then Supply Code assessment.**

HEADNOTE

A writ challenging a provisional assessment notice and a recovery citation in an alleged electricity-theft case was disposed of once the licensee stated that the citation was against another person and that no final assessment had been made against the petitioner. The petitioner was left at liberty to file objections to the provisional assessment within fifteen days, after which the licensee may proceed only under the Electricity Supply Code, 2005 procedure for assessment in cases of unauthorised use.

FACTUAL SUMMARY

Kadeer Hussain alias Kadeer Ahmad, the writ petitioner, was proceeded against for alleged theft of electricity. A provisional assessment notice dated 31 December 2020 and a recovery citation dated 28 June 2022 were issued. He told the Allahabad High Court that recovery was being pressed although no final assessment order had been passed. Counsel for the electricity department, on instructions, stated that the recovery citation was against one Kabir Ahmad and not the petitioner, and that no final assessment had been made against the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.1

Unauthorised-use assessment after provisional notice

HOLDING

Where the licensee concedes that the impugned recovery citation is against another person and that no final assessment has been made against the consumer, a writ to quash the provisional assessment notice and the citation is disposed of without a merits finding: the consumer may file objections to the provisional assessment within fifteen days, and the licensee may thereafter proceed only in accordance with the Electricity Supply Code, 2005 procedure for assessment in cases of unauthorised use. ¶ 4

FLAG Order cites no clause number. It directs the Supply Code 2005 procedure for assessment in unauthorised-use cases, which the catalog maps to clause 6.1 or 6.4. Not 6.1(g) or 6.10–6.16.

PRINCIPLE TAGS

art-226-no-factual-enquiry-assessment-relegated-clause-6.1-or-6.4 The Division Bench did not enquire into the alleged theft or the provisional assessment of 31 December 2020. It disposed of the writ by leaving the petitioner to object within fifteen days and the licensee to assess strictly under the Supply Code 2005 procedure for unauthorised use. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT NOTICE DATED 31 DECEMBER 2020 IS SUSTAINABLE, AND WHETHER THE PETITIONER HAD COMMITTED THEFT OR UNAUTHORISED USE OF ELECTRICITY.

Left to objections and the Supply Code assessment procedure. ¶ 4

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 28 JUNE 2022 IS QUASHED.

The licensee stated it was issued against Kabir Ahmad and not the petitioner. The Court recorded that stand and disposed of the petition without a formal quashing order. ¶ 4

